

Arvind Chaudhary v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 21 August 2018 · Writ - C No. 27357 of 2018 · **Writ disposed; representation directed; coercive action stayed 45 days.**

HEADNOTE

Without deciding whether an 11 July 2018 electricity notice complied with the U.P. Electricity Supply Code, 2005, the Allahabad High Court disposed of the writ by sending the consumer to a fresh representation before the Executive Engineer for a speaking order after hearing, and stayed coercive action for 45 days or until that decision, whichever was earlier.

FACTUAL SUMMARY

Arvind Chaudhary petitioned the Allahabad High Court to quash a notice dated 11 July 2018 issued by the Executive Engineer of the electricity department, alleging it was issued without following the U.P. Electricity Supply Code, 2005. After two adjournments for departmental instructions, counsel confined the prayer to permission to file a fresh objection or representation before that authority for time-bound decision.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.9

notice — relegated to representation

HOLDING

Without expressing any opinion on the merits of a challenge to an electricity-department notice alleged to have been issued in breach of the Supply Code, 2005, the writ was disposed of by directing the consumer to appear before the Executive Engineer on 6 September 2018 and file a fresh representation/objection, to be decided by a speaking order after hearing in accordance with law, preferably within 15 days; coercive action was stayed for 45 days or until that decision, whichever was earlier. ¶ 3

FLAG order cites the Supply Code 2005 generally; 6.9 is the catalog hit, not numbered in the order

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE NOTICE DATED 11 JULY 2018 WAS ISSUED IN BREACH OF THE U.P. ELECTRICITY SUPPLY CODE, 2005

Court expressly declined to opine on the merits. ¶ 3